

24STLC04194 24STLC04194

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-29

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Case Number: 24STLC04194 Hearing Date: July 29, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff

Ajitananda Barua's Motion to Vacate Dismissal is denied.

On

its own motion, the Court vacates the dismissal entered on 12/23/2025.

Order

to Show Cause Re: Entry of Default and Default Judgment against Defendants Mirna Lorena Lopez Barrietos and Mario Pacheco is scheduled for 08/26/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Order

to Show Cause Re: Failure to File Proof of Service of Summons and Complaint as to Defendant Rolando Rafael Fuentes Orizabal is scheduled for 08/26/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Analysis:

Plaintiff Ajitananda Barua ("Plaintiff") filed the instant action for motor vehicle negligence against Defendants Mirna Lorena Lopez Barrietos, Mario Pacheco, and Rolando Rafael Fuentes Orizabal ("Defendants") on June 11, 2024. Upon the action being filed, trial was set for December 9, 2025. (Third Amended Standing Order, 06/11/24.) Proofs of Substitute Service with respect to Defendants Barrietos and Pacheco were filed on May 15 and 22, 2025. On November 26, 2025, the trial date was continued from December 9, 2025 to December 23, 2025 on account of the Court being unavailable on the earlier date.

(Notice Re: Continuance of Hearing and Order, 11/26/25.)

Following Plaintiff's failure to appear for trial on December 23, 2025, the Court dismissed the action without prejudice. (Minute Order, 12/23/25.) Plaintiff filed the instant Motion to Vacate Dismissal on June 15, 2026. No Defendant has appeared in this action, nor has any opposition to the instant Motion been filed to date.

Discussion

The

Motion is brought pursuant to Code of Civil Procedure, section 473, subdivision (b) on the basis of surprise, excusable neglect, and inadvertence. (Notice, p. 2:24-27.) Under this statute, an application for relief must be made within a reasonable time, no more than six months after entry of the order from which relief is sought and must be accompanied by an affidavit of fault attesting to the party or attorney's mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.)

The

Motion is supported by a declaration from Plaintiff's counsel, who declares that he was unaware of the trial date because of "bugs and glitches" in the office computer system that prevented it from printing out emails from the Court on a reliable basis. (Motion, Canter Decl., ¶¶6-8.) As a result, Plaintiff's counsel contends that he had no way of knowing about a court appearance for December 23, 2026. (Ibid.) And further – far from admitting error or inadvertence – that Defendant and counsel "have been denied due process due to the computer glitches." (Ibid.) This explanation does not admit any mistake, inadvertence, surprise, or error, and is insufficient for that reason. (Code. Civ. Proc., §473(b); Credit Managers Assn. v. Nat'l Indep. Bus. All. (Ct. App. 1984) 162 Cal. App. 3d 1166, 1173 (" 'Surprise' referred to [473(b)] is 'some condition or situation in which a party to cause is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against.' ").

Further,

the explanation does not credibly address Plaintiff's counsel's failure to

appear on December 23, 2025. Trial in this

matter was set for December 9, 2025 when the case was filed. This was long before the purported computer glitches.

The December 9, 2025 trial date was stated in the Third Amended Standing Order provided to Plaintiff's counsel at the time the case was filed. Plaintiff certainly received it, and in fact served it on Defendants with the other case-opening documents. (See Proofs of

Service, 5/15/25, 5/22/25.) Plaintiff's

counsel does not explain why he did not attempt to appear for the December 9,

2025 trial date, of which he indisputably had notice. Had he attempted to appear on December 9, 2025

– or even consulted the docket in preparation for that date – he would have been

alerted that the trial date had been continued to December 23, 2025. For these reasons, the Declaration does not credibly establish that whatever mistake or surprise counsel admits here, if

any is admitted, was the cause of the dismissal. (See *State Farm Fire & Cas. Co. v.*

Pietak (2001)90 Cal. App. 4th 600, 609 (affirming denial of 473(b) motion,

where “neither [attorney] declaration contains any sworn admission of mistake, inadvertence, surprise, or error that resulted in a dismissal of claims”).)

Nor does the Motion demonstrate that it was timely filed

within a reasonable time, as required by the moving statute. Where the statute requires that “ ‘the application must be made within a ‘reasonable time’ ... what is a reasonable time in any case

depends upon the circumstances of that particular case.” While in “the

determination of that question, a large discretion is necessarily confided to

[the trial] court” ... there must be some showing—some evidence—as the basis

for the exercise of such discretion.’ ” (*Caldwell v. Methodist Hospital*

(1994) 24 Cal.App.4th 1521, 1524 [citing *Carrasco v. Craft* (1985) 164

Cal.App.3d 796, 805].) For unknown reasons, Plaintiff's counsel's paralegal did

not look at the Register of Actions for this action until June 8, 2026, almost

six months after the originally scheduled trial date. (Motion, Orellana Decl.,

¶13.) As Plaintiff does not address the requirement that the Motion be filed

within a reasonable time, the Court has no basis to find that it was so filed.

However, although the Court

finds no basis for discretionary relief pursuant to Code of Civil Procedure

section 473, subdivision (b), it notes that dismissal pursuant to Code of Civil

Procedure section 581, subdivision (b)(3) requires 30 days' notice of the trial

date. Here, the continuance was ordered on November 26, 2025, which did not give

Plaintiff the requisite 30 days' notice required for dismissal under section

581, subdivision (b)(3). Therefore, the Court vacates the dismissal on its own

motion and sets orders to show cause regarding requests for entry of default

against Defendants Barrietos and Pacheco and filing proof of service of the Summons and Complaint as to Defendant Orizabal.

Conclusion

Plaintiff

Ajitananda Barua's Motion to Vacate Dismissal is denied.

On

its own motion, the Court vacates the dismissal entered on 12/23/2025.

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Judicial Assistant to give notice.